

STATE OF NEW YORK

8034--A

Cal. No. 1301

2025-2026 Regular Sessions

IN SENATE

May 15, 2025

Introduced by Sen. RAMOS -- read twice and ordered printed, and when printed to be committed to the Committee on Labor -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the labor law, in relation to disputes between employers and recognized employee organizations

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Section 715 of the labor law, as amended by chapter 890 of the laws of 1968, is amended to read as follows:

§ 715. Application of article. 1. The provisions of this article shall not apply to: ~~[(1)]~~ (a) employees of any employer who concedes to and agrees with the board that such employees are subject to and protected by the provisions of the ~~[national labor relations act or the]~~ federal railway labor act; ~~[or (2)]~~ (b) employees where the national labor relations board successfully asserts jurisdiction over any employer, employees, trades, or industries pursuant to an order by the federal district court established under article three of the United States constitution; or (c) employees of the state or of any political or civil subdivision or other agency thereof.

2. For all other employees, the board shall, upon application and verification, promptly certify the exclusive bargaining representative of any bargaining unit previously certified by another state or federal agency. All existing terms and conditions of employment between a certified exclusive bargaining representative and an employer shall remain in full force and effect through the board's verification process.

§ 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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